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Titles With Court Orders

Any of these types of services may be done through [Title and Registration](#) or [Title Only](#). The Ownership Reason in a Title service will need to be changed to match the type of documentation received.

Bankruptcy

Bankruptcy occurs when a person has more debt than income and files for relief from the creditors through the court system. The court will issue an Appointment of Trustee or an Appointment of Referee order for the distribution of property to the applicant and must be submitted at time of transfer.

► Documentation Required for a Bankruptcy

Conservator or Guardianship

A court appointed conservator or guardian may sign ownership documents for the disposition of property belonging to a protected person. The conservator or guardian is at your office to dispose of, purchase vehicles or trailers.

► Documentation Required for Conservator or Guardianship

Divorce Decree

When a vehicle(s) is jointly owned and is awarded to a specific person in a divorce settlement, the certified court order of the Divorce Decree must be submitted. The Divorce Decree becomes the legal document used for the transfer of ownership.

A Divorce Decree may specify the placement of a lien (Divorce Decree Lien) rather than a transfer of ownership.

► Documentation Required for a Divorce Decree

Judgment

Judgment paperwork is a court document indicating the vehicle is to undergo an involuntary transfer of ownership.

The involuntary transfer of ownership is also known as an Operation of Law. This operation of Law indicates that a person has filed a lawsuit for damages or due case, and the court's decision has ruled in favor of the applicant (the person who filed).

The court will issue the judgment document to the claimant (the person that owns the items) and the judgment document becomes the ownership document used to process the T&R transaction.

► Documentation Required for a Judgment

Pending Order of Forfeiture

A Pending Order of Forfeiture is where a seizing agency may place a vehicle under constructive seizure. The seizing agency will notify the Division that a Notice of Pending Forfeiture is issued and will contain the description of the vehicle by the VIN and one additional item of information, (e.g., current or prior license plate number, current title number, or name of the owner of record).

The Division will place a Forfeiture Lien incident on the vehicle and will require the lien to be satisfied or overridden by an upline approver.

A lien release and odometer disclosure statement is not required.

Order of Forfeiture

An Order of Forfeiture is where the court has issued an order to seize a vehicle. The Order will award ownership of either a vehicle or a major component part of a vehicle.

When a major component part of a vehicle is named in the Order, a Special Serial Number will be assigned to the vehicle. View the [Assign State VIN](#) topic for more information.

► Documentation Required for an Order of Forfeiture

► Notification of an Order of Forfeiture on Title

Probate

Probate is the administration of the estate of a deceased person by the courts. A personal representative will be appointed by the court to sign ownership documents for the disposition of property belonging to a deceased person (administer the estate).

► Documentation Required for a Probate



Until we are fully paperless, when you finish the T & R service for the customer, you will print out the Title Summary (artifact), have the customer review and sign, and re-scan into MAX. This will replace the process where you print the T&R Application for the customer to sign.

Policies

[8.8.1 Bankruptcy](#)

[8.8.2 Divorce Decree](#)

[8.8.3 Judgment](#)

[8.8.6 Pending Order of Forfeiture - Order of Forfeiture](#)

[8.8.7 Probate \(Estate\)](#)

Forms

[#38-1306 Title Transfer \(Bill of Sale\)](#)

[#96-0236 T&R Application \(Single\)](#)

Charts

[Examples of Signatures](#)

[Signature Requirements for T&R](#)

HELPFUL LINKS

» [MVD / DMV Public Website](#) »

» [Customer Portal](#) »

Last Updated: May 08, 2026